

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Judyann Bentick	Team: Team # 8	CCRB Case #: 200403996	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 04/29/2004 9:00 PM	Location of Incident: near 1309 169th Street	18 Mo. SOL 10/29/2005	Precinct: 42
Date/Time CV Reported Thu, 04/29/2004 10:27 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 04/29/2004 10:27 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Marc Burgos	17663	929799	042 PCT
2. POM Dennis Friendly	08721	930185	042 PCT
3. Officers			42 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Dennis Friendly	Abuse: PO Dennis Friendly stopped and questioned § 87(2)(b) and § 87(2)(b)	A . Complainant Uncooperative
B . POM Marc Burgos	Abuse: PO Marc Burgos stopped and questioned § 87(2)(b) and § 87(2)(b)	B . Complainant Uncooperative
C . Officers	Force: An officer used physical force against § 87(2)(b)	C . Complainant Uncooperative
D . Officers	Abuse: Officers frisked and searched § 87(2)(b) and § 87(2)(b)	D . Complainant Uncooperative
E . Officers	Abuse: Officers issued a summons to § 87(2)(b) and § 87(2)(b)	E . Complainant Uncooperative

Synopsis

§ 87(2)(b) and his three friends § 87(2)(b) and § 87(2)(b) went to a grocery store on 169th Street in the Bronx. After they left the store, they realized that § 87(2)(b) was not with them; they decided to wait for him on the sidewalk. As they waited, they observed two male officers later identified as PO Marc Burgos and PO Dennis Friendly exit their vehicle and “run up” to a man with a beer in his hand. When the officers discovered that the container was closed, § 87(2)(b) and his friends began to laugh. The officers got back in their patrol car and told § 87(2)(b) and his friends to disperse. When they refused, PO Burgos and PO Friendly exited their vehicle and approached them. § 87(2)(b) and his friends started to walk away because they did not want a confrontation. The officers told them to stop and asked for identification. When § 87(2)(b) asked the officers why they wanted identification and they told him because they were going to search him. § 87(2)(b) protested and told the officers that they did not have probable cause to search him. One of the officers told him that he failed to comply with a direct order so they were going to search him. § 87(2)(b) asked § 87(2)(b) for his cell phone and tried to call a friend who was a police officer. When one of the officers saw what he was doing, he grabbed his arm and tried to take the cell phone away. § 87(2)(b) refused to hand over the cell phone and continued to struggle with the officer until § 87(2)(b) asked for his cell phone back. § 87(2)(b) took the phone and tried to speak to § 87(2)(b)'s friend. One of the officers grabbed his arm, placed his arm behind his back and yelled, “Give me the phone! You cannot use the phone.” The officer then placed § 87(2)(b)'s other arm behind his back and tried to handcuff him. § 87(2)(b) tried to tell the officer that he would put the phone away, but the officer handcuffed him anyway. The officers searched § 87(2)(b) and § 87(2)(b). § 87(2)(b) did not know whether or not § 87(2)(b) was searched. After they were searched, the officers issued them summonses for disorderly conduct. § 87(2)(b) who was standing across the street, was not issued a summons.

Since § 87(2)(b) and § 87(2)(b) live in the same apartment, the investigator sent three please call letters to § 87(2)(b) and § 87(2)(b) and called their home phone number on four separate occasions. On May 26, 2004, the investigator contacted § 87(2)(b) and scheduled an appointment for June 8, 2004. § 87(2)(b) also provided the name and telephone number for § 87(2)(b). § 87(2)(b) missed his appointment. On June 10, 2004, the investigator called § 87(2)(b). As the investigator was in the process of explaining the complaint, § 87(2)(b) hung up the phone. When the investigator called § 87(2)(b) back, his voice mail immediately answered. The investigator left a message, but to date § 87(2)(b) has not returned the call.

§ 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: